

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUBC064418: ANGELA C. MARTINEZ, et al. vs FORD MOTOR COMPANY, A
DELAWARE CORPORATION, et al.**

07/06/2026 in Department 44

Motion to Compel Arbitration and Stay Action by Ford Motor Company

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions: Defendant Ford Motor Company’s (“Ford”) Motion to Compel Arbitration and Stay Action (“Motion”)¹

I. Tentative Ruling:

Ford’s Motion to Compel Arbitration and Stay Action is GRANTED.

The Court sets a status conference re: Arbitration on **July 9, 2027, at 8:30 a.m.** The parties are ordered to submit a joint statement at least 10 days in advance of the conference to advise as to case status.

Counsel for Ford shall give notice.

¹ The dealer, Envision VTA FD Auto (“Envision”), was named in the complaint as well, and also filed a motion to compel arbitration on May 26, 2026. Thereafter, on June 12, 2026, Plaintiffs dismissed Envision from this action without prejudice. Accordingly, the Court declines to rule on Envision’s Motion, which has been mooted by the dismissal.

II. Relevant Background

On May 3, 2025, Plaintiffs, Angela C. Martinez and Jovani Martinez (“Plaintiffs”) purchased a new 2025 Ford F-150 from Envision and signed a retail installment sales contract with Envision. (Clayton Decl., ¶ 2, Exh. A.) On the same day, Plaintiffs also signed an agreement entitled, “Ford’s warranty, your responsibilities to preserve your warranty, and our arbitration agreement.” (“Agreement.”) (Clayton Decl., ¶ 3, Exh. B.)

The Agreement provides that in order to preserve the warranty the customer should be “sure to” perform maintenance as specified in the Owner’s Manual. The Agreement further provides, in relevant part, as follows:

“You, Ford, and the selling dealer further agree that all remaining disputes **will be addressed in binding arbitration** rather than in court litigation. If one party files a court action instead of arbitration, all court proceedings will be stayed until resolution of any proceedings to compel arbitration, including appeals. All parties retain the right to seek relief in a small claims court for disputes or claims within that court’s jurisdiction. **In arbitration, there is generally less discovery and appellate review than in court, there is no jury, and this Agreement includes a class-action waiver.**” (Clayton Decl., ¶ 3, Exh. B [emphasis in original].)

“The scope of the arbitration agreement is defined as requiring arbitration “of any dispute between you and Ford or Ford’s authorized dealers arising out of or relating in any way to your Ford vehicle, other than claims for personal injury manifested by physical injury or death. Claims subject to arbitration pursuant to this Agreement include warranty disputes and claims related to statements about Ford’s products before you signed this Agreement. The parties waive the right to participate as a plaintiff or class member in any class-action lawsuit or other representative proceeding. The arbitrator may award individual remedies that would be available in court but has no authority to issue a public injunctive remedy.” (*Id.*)

The Agreement has a severance clause, and a delegation clause that vests the arbitrator with “exclusive authority to address arbitrability and jurisdiction, enforceability, scope, who is bound by this Agreement, questions of waiver, estoppel, forfeiture, laches, procedural timeliness, breach or default, discovery, and arguments based on litigation conduct or timing of payments relating to arbitration.” (*Id.*)

The Agreement provides issues delegated to the arbitrator, the Agreement, and arbitration-related proceedings “shall be governed by the Federal Arbitration Act (9 U.S.C. § 1 et. seq.) and federal common law, and not by any state’s law or procedures regarding arbitration.” (*Id.*)

The Agreement provides a procedure to initiate the arbitration process, that the arbitration will be governed by AAA’s Consumer Arbitration Rules, and limits the fee for arbitration to be borne by the consumer of a maximum of \$275. (*Id.*)

On April 7, 2026, Plaintiffs filed the Complaint in this action in which they allege two violations of the Song-Beverly Consumer Warranty Act for breaches of express and implied warranty.

On May 18, 2026, Ford filed the Motion and supporting papers. Plaintiffs opposed the motion on June 22, 2026, but did not submit any evidence in support of their opposition to the Motion. Briefing was complete with the filing of Ford's reply brief on June 26, 2026.

No trial date has been set.

III. Discussion

A. Legal Framework: Motion to Compel Arbitration

"A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract." (Code Civ. Proc., § 1281.)

California has a strong public policy in favor of arbitration. (*Moncharsh v. Heily & Blasé* (1992) 3 Cal.4th 1, 9.) Likewise, Section 2 of the Federal Arbitration Act (FAA) provides in relevant part: "A written provision in...a contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction...shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C. § 2.) "In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.)

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and where a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate if it determines an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2; *Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505.) While the proponent of arbitration always has the burden of persuasion to show the existence of the agreement by a preponderance of the evidence, the burden of production may shift during the three-step analysis of the existence-of-an-agreement analysis. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164 ("*Gamboa*"), quoting *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394 ("*Rosenthal*"), citing Code Civ. Proc. § 1281.2.)

First, "the moving party bears the burden of producing 'prima facie evidence of a written agreement to arbitrate the controversy.'" (*Gamboa*, *supra*, 72 Cal.App.5th at p. 165, quoting *Rosenthal*, *supra*, 14 Cal.4th at p. 413.) The moving party's initial burden does not require an "evidentiary showing of the agreement's validity." (*Kostandian v. American Honda Motor Co., Inc.* (2026) 120 Cal.App.5th 872, 879 & 881 ("*Kostandian*"), citing *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219 ("*Condee*").) Rather, the moving party need only establish that the agreement exists, whether by restating the provisions verbatim or by presenting a copy of the agreement as required by the plain language of Code of Civil Procedure section 1281.2 and Rule 3.1330 of the California Rules of Court. (*Kostandian v. American Honda Motor Co., Inc.* (2026) 120 Cal.App.5th 872, 879-880 citing *Condee*, *supra*, 88 Cal.App.4th at p. 219, Code Civ. Proc. § 1281.2, and Cal. R. Ct., rule 3.1330.)

Second, once the moving party meets the initial prima facie burden and the opposing party disputes the agreement, “the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” *Gamboa, supra*, 72 Cal.App.5th at p. 164-65, quoting *Condee, supra*, 88 Cal.App.4th at p. 219.) The party opposing the agreement can meet this evidentiary showing in “several ways.” The opposing party may submit a sworn declaration or testify that they never saw the agreement, do not remember signing the agreement, or were never provided a copy of the agreement. (*Gamboa, supra*, 72 Cal.App.5th at p. 164-65 [citations omitted].) If the party opposing arbitration does not dispute the agreement by making this evidentiary showing, “then nothing more is required for the moving party to meet its burden of persuasion.” (*Id.*)

Third, where the party opposing arbitration meets their burden of production to dispute the agreement, then the burden shifts back to the moving party to establish, “with admissible evidence a valid arbitration agreement between the parties.” (*Gamboa, supra*, 72 Cal.App.5th at p. 165-66, citing *Rosenthal, supra*, 14 Cal.4th at p. 413.)

A written provision in a contract to submit to arbitration for a dispute contemplated by the contract is valid, irrevocable and enforceable except on “such grounds as exist at law or in equity for the revocation of any contract.” (9 United States Code, § 2 [contracts subject to the Federal Arbitration Act (FAA)]; Code Civ. Proc., § 1281 [contracts governed by state arbitration law].) Thus, the existence of a valid agreement to arbitrate is determined by reference to state law principles regarding the formation, revocation and enforceability of contracts generally. (See *Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 385; see also *Kinney v. United Health Care Services, Inc.* (1999) 70 Cal.App.4th 1322, 1327-28.)

B. Existence of an Arbitration Agreement

Here, Ford seeks to compel the Plaintiffs to arbitration based on an agreement between Ford and Plaintiffs. In doing so, Ford has presented an arbitration agreement that purports to be signed by the Plaintiffs on the day the Plaintiffs purchased a new Ford F-150 vehicle. In response, Plaintiffs argue that Ford cannot enforce an agreement to which it is a non-signatory, citing *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 (“Ford II”), *Montemayor v. Ford Motor Co.* (2023) 92 Cal.App.5th 958 (“*Montemayor*”), and *Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324 (“Ford I”). These cases are all distinguishable from the case presented here. In each of the cases Plaintiffs cite, Ford was in a materially different position in that Ford was not a party to any of the arbitration agreements, all of which were between the dealer and the consumer. (*Ford II, supra*, 17 Cal.5th at p. 1126; *Montemayor, supra*, 92 Cal.App.5th at p. 962-63; *Ford I, supra*, 89 Cal.App.5th at p. 1329.) Ford asserted a variety of theories as to why Ford could compel arbitration to an agreement to which it was not a signatory, and the courts in those cases rejected those theories. Ford has met its burden to establish the existence of an arbitration agreement sufficient to shift the burden of production to Plaintiffs.

Plaintiffs dispute the existence of the arbitration agreement by characterizing Ford as a non-signatory to the Agreement. To the extent Plaintiffs’ arguments hinge on the fact that Ford did not sign the Agreement, or that there was no space for Ford to sign the Agreement, Plaintiffs cite no authority or provision in the agreement that would indicate the agreement would only be enforceable if both parties signed it. (Compare *Marcus & Millichap Real Estate Investment Brokerage Co. v. Hock Investment Co.* (1998) 68 Cal. App.4th 83, 91 [clause clearly

contemplates signature of all parties required to be effective] with *B.D. v. Blizzard Entertainment, Inc.* (2022) 76 Cal.App.5th 931 [sign-in wrap contract indicated mutual assent when consumer clicked “continue” to proceed together with sufficiently conspicuous advisement of the agreement].) Plaintiffs’ reliance on *Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209 is misplaced. That *Goldman* case sets forth the rule for when a “non-signatory” or a nonparty to an arbitration agreement can use equitable estoppel to invoke the arbitration clause, i.e., when “the claims plaintiff asserts against the nonsignatory must be dependent upon, or founded in and inextricably intertwined with, the underlying contractual obligation of the underlying arbitration agreement.” (*Id.* at p. 217-218.) The *Goldman* case, just as in the three Ford cases cited by Plaintiffs, involved situations in which the party seeking to invoke the arbitration clause was not a party to the agreement. Here, Ford is a party to the Agreement.

Accordingly, Ford has established the existence of an agreement to arbitrate.

C. The FAA Governs the Dispute

Once an arbitration agreement is found to exist, the Court will next “determine whether the question presented is subject to the FAA or the CAA because different rules apply under the two acts, which in some cases leads to federal preemption.” (*Aixtron, Inc. v. Veeco Instruments Inc.* (2020) 52 Cal.App.5th 360, 391, disapproved on other grounds by *Vo v. Technology Credit Union* (2025) 108 Cal.App.5th 632.) “A party seeking to enforce an arbitration agreement has the burden of showing FAA preemption.” (*Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 687.) “For example, a petitioner seeking an order to compel arbitration must show that the subject matter of the agreement involves interstate commerce.” (*Id.* at pp. 687-688.)

Here, Ford has produced a copy of the arbitration agreement, which states that it is governed by the FAA. (Motion, Exh. A.) An agreement that the FAA applies, without more, is sufficient to find that the FAA applies. (*Tuufuli v. West Coast Dental Administrative Services, LLC* (2026) 117 Cal.App.5th 1048, 1054, and cases cited therein.)

Plaintiffs make no argument and cites no authorities in support of a contrary conclusion.

Thus, the Court finds that the FAA applies.

D. The Agreement Delegates to the Arbitrator Decisions Concerning Scope, Waiver, and Enforceability.

“It is well-settled under both state and federal law ‘that absent the parties’ commitment of the arbitrability decision to an arbitrator, disagreements over whether a particular dispute is within the scope of an arbitration provision are ordinarily the responsibility of a court.’ ” (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 765 [quoting *Sandquist v. Lebo Automotive, Inc.* (2016) 1 Cal.5th 233, 249].) “There is a strong presumption that courts should determine the jurisdiction of arbitrators.” (*Mendoza, supra*, at p. 765 [internal quotation marks omitted]; see also *AT & T Technologies, Inc. v. Communications Workers of America* (1986) 475 U.S. 643, 649 [“Unless the parties clearly and unmistakably provide otherwise, the question of whether the

parties agreed to arbitrate is to be decided by the court, not the arbitrator.”].) However, to the extent an arbitration contains a delegation clause that vests the arbitrator with authority to determine an agreement’s scope, validity or enforceability, such agreements are enforceable under the FAA so long as the evidence is clear and unmistakable that the parties intended the delegation. (*Sandoval-Ryan v. Oleander Holdings, LLC* (2020) 58 Cal.App.5th 217, 225.) And delegation clauses are enforceable where the Plaintiff does not challenge their validity. (*Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 70-76.)

Here, Ford does not address, and Plaintiffs do not challenge whether the delegation clause extends to the scope of the Agreement. The Court finds that the delegation agreement clearly and unmistakably vests the arbitrator with authority to determine the scope of the Agreement.

Notwithstanding the fact that the arbitration provision in the Warranty contains a delegation clause that delegates several issues including arbitrability, enforceability, scope and waiver, among other issues, Ford argues that this Court should find that Ford has not waived its right to arbitrate and similarly, that the Agreement should not be revoked because it is not unconscionable. (Motion, pp. 7-11.)

Issues of waiver and revocation, however, were not raised by the Plaintiffs, who would have the burden “to establish a defense to the enforcement of the agreement, including the burden of demonstrating that the exemption [from arbitration] applies.” (*Nixon v. AmeriHome Mortgage Co., LLC* (2021) 67 Cal.App.5th 934, 946 [internal quotation marks and citation omitted].) Accordingly, the Court declines to address Defendant’s arguments in this regard.

IV. Disposition

For the reasons stated above, the motion is GRANTED.

The Court Clerk shall give notice.